

Washington Blake filing guide

Your selected court and scope

File in the District Court that sentenced you in King. Cause SYNTH-19-1-001234-1. The packet requests full relief: all convictions under this cause number are identified as Blake-void. Verify the court record before selecting the motion and matching order. District and municipal courts use Blake-002 with Blake-005 (full) or Blake-006 (partial); superior court uses Blake-001 with Blake-007 (full) or Blake-008 (partial). Do not mix court levels.

This relief concerns an unconstitutional possession conviction under State v. Blake and State v. A.L.R.H.; no clean-record or waiting-period requirement is imported. Possession with intent or delivery is outside this route. A treatment-program route is a separate question; completing treatment is not a Blake prerequisite.

Records to obtain and compare before filing

Obtain your Washington State Patrol criminal-history record and the sentencing-court docket. Start with the WSP WATCH name/date-of-birth conviction check and consult the current WSP fee table before paying; a non-conviction record uses a separate fingerprint/inspection process. Ask the sentencing-court clerk for the docket, judgment and sentence, exact statutory subsection, count numbers, offense class, sentencing, release and supervision dates. Compare every supplied conviction and remaining count to those records. If court level, statutory coverage or full/partial scope is unclear, stop and obtain legal help.

Obtain the complete payment history from the clerk or the collection agency for this cause number. Use it to verify LFO payments and balances. The court or clerk determines refund eligibility and calculates the amount and interest; participant estimates in the attached schedule are not a court finding. Keep originals and permanent copies. Attach a true court payment-history printout if available; never invent an official accounting attachment.

Prepare and file

Review the motion and its attached conviction/payment schedule. Complete actual signature and execution steps personally where required; the pattern forms do not require notarization. Printed participant names and known mailing information are supplied. Leave judge/prosecutor signatures, court decisions, actual notice findings, refund amounts, remaining supervision orders and dates to their owners. Known count tables in the proposed partial order are proposed factual entries for court review.

Ask the sentencing-court clerk about local supplemental forms, filing method, required copies, service and whether a hearing is necessary. No fixed court filing fee is quoted here because local fees were not established; confirm any charge before filing. The requested waiver of outstanding LFOs is part of Blake relief, not a separate indigency form.

Hearing and service

No hearing notice is included because no hearing is requested or scheduled. Confirm local practice; if a hearing is later required, prepare the current Blake-003 with confirmed details before serving it.

Serve the prosecutor for the sentencing court and file truthful proof of service. Blake-004 is a blank certificate for the actual server: actual date, time, delivery method, delivery address, server identity and signature must reflect what occurred. Its issuer-printed document list mentions the motion and calendar note. If no notice was served, do not sign a certificate saying it was; ask the clerk for the accepted correction to that document list. No service is performed or certified by generation.

Refund and follow-through

The selected motion seeks vacation, refund of LFOs and accrued interest paid on unconstitutional convictions, waiver of remaining related LFO balances, and removal of related collection assignments. The court decides all amounts and eligibility. For a partial case, amounts and obligations attributable to remaining counts require court treatment; do not assume the whole case balance disappears.

After the signed vacation order and refund-eligibility determination, use the Washington Courts Blake Refund Bureau official online portal or its official mail process. Confirm the current instructions with the Bureau or clerk. Blake-002 is the CLJ motion, not a separate refund application. Retain the signed order, payment history and proof of any payment. Do not seek a duplicate refund; disputes about a prior refund or collection history need assistance. Confirm clerk transmission to WSP and relevant agencies, then compare updated records.

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Limits and when to stop

Any pending charge in Washington, another state, federal court, or tribal court.

Any domestic violence element, charged or findable from the court file.

Any protection, no-contact, antiharassment or civil restraining order currently in effect, or violated in the last five years.

Any DUI, physical control, or alcohol or drug related driving offence, including a reduced charge.

Any firearm, deadly weapon or sexual motivation enhancement.

Any question about offence class or the exact RCW.

Immigration consequences.

Any participant whose real goal is firearm rights restoration, which is a separate proceeding under RCW 9.41.041.

The conviction may not be simple possession, since possession with intent and delivery are outside Blake.

The case included other charges and it is unclear whether a full or partial vacatur is right.

The participant is chasing a refund from a court that has already refunded it, or through a collections agency that disputes the payment history.

Vacation does not seal the court file or remove public indexes and does not restore firearm rights. The exact Blake pattern orders address the consequences of the unconstitutional convictions; do not apply ordinary-vacation recidivist language to override these orders. Obtain legal advice about other remaining convictions or later proceedings.

Synthetic review fixtures are not for filing.